

## Tentative Rulings for July 29, 2026 Department PS2

**To request oral argument, you must notify Judicial Secretary  
Carol Delfosse-Kidd at (760) 904-5722  
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department PS2 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

COUNSEL AND SELF-REPRESENTED PARTIES ARE ENCOURAGED TO APPEAR AT ANY LAW AND MOTION DEPARTMENT TELEPHONICALLY WHEN REQUESTING ORAL ARGUMENTS.

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,  
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 644 5616**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

**Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.**

1.

| CASE #      | CASE NAME                                                    | HEARING NAME                |
|-------------|--------------------------------------------------------------|-----------------------------|
| CVPS2404847 | RUIZ VS STATER BROS.<br>MARKETS, A CALIFORNIA<br>CORPORATION | MOTION FOR PROTECTIVE ORDER |

**Tentative Ruling:** Denied.

Moving party to provide notice pursuant to CCP 1019.5.

This is a slip and fall case. Plaintiff Orlando Ruiz fell at Stater Bros. Market in Desert Hot Springs, California on August 12, 2022. (Complaint ¶1.) Plaintiff alleges negligence and premises liability.

Plaintiff served Requests for Admissions on Defendant on June 2, 2026. The Requests contain numbers 33 through 105. The requests included a declaration from Plaintiff's counsel stating additional admissions (exceeding the allowed 35) were warranted due to the complexity of the matter. The parties met and conferred about the discovery and Plaintiff's counsel withdrew RFA numbers 33, 35, 36, and 39. The parties were unable to reach a resolution regarding the remaining RFAs.

Defendant Stater Bros. Market seeks a protective order pursuant to CCP §2033.060 and 2019.030 to relieve it from providing responses to Requests for Admissions, Set Two numbers 33 to 105. Stater Bros. also seeks \$1,750 in monetary sanctions. Defendant argues the challenged RFAs improperly seek expert medical opinions, medical and legal conclusions, and information outside Stater Bros.' knowledge. Defendant argues this case does not warrant expanded discovery as it is not complex.

Plaintiff opposes the motion. Plaintiffs argues the RFAs are proper as they seek basic contentions and not expert opinions. Plaintiff argues Defendant's position that it, a lay entity, can't answer the types of RFAs propounded is hypocritical as Defendant has propounded nearly identical discovery on Plaintiff. Plaintiff seeks \$1,500 in monetary sanctions against Defendant and its counsel and argues sanctions against Plaintiff must be denied.

#### Protective Order

Instead of responding, the party to whom RFAs have been directed may promptly move for a protective order. (CCP §2033.080.) For "good cause" shown, the court may make whatever order justice requires to protect a party against "unwarranted annoyance, embarrassment, oppression, or undue burden and expense." (CCP §2033.080(b).) A motion for protective order also lies to challenge a "declaration of necessity" served with more than 35 RFAs. The motion places in issue whether the additional discovery requests are justified. (CCP §2033.080(b)(2).) Where there are more than 35 RFAs and the responding party seeks a protective order on the ground the number is excessive, the burden is on the propounding party to justify the number served. (CCP §2033.040(b).)

Here, Plaintiff propounded 105 RFAs. The discovery was accompanied by Attorney Michell Cohen's declaration who stated the requests were warranted because of the

complexity and quantity of existing and potential issues in the case. (Cohen Decl. ¶¶7.) Cohen stated none of the questions were propounded for any improper purposes. (¶¶8.)

Defendant makes two arguments in support of the motion. First, that this is not a complex case under CCP §2033.040 so additional interrogatories beyond the permitted 35 are unnecessary. As noted, it is Plaintiff's burden to justify the number of RFAs served. (CCP §2033.040(b).) Plaintiff must prove complexity of the case, financial burden of depositions, or expedience of interrogatory answers. The declaration filed in support of the RFAs simply cites complexity of the case and expediency in using this discovery method. (Cohen Decl. of Necessity ¶¶7.) In the Opposition, Plaintiff does not discuss the complexity of the case or why RFAs are the most expedient form of discovery.

A jury trial is set for September 4, 2026, so presumably Plaintiff propounded RFAs to obtain answers prior to the trial date. This is, however, the court's assumption as Cohen does not address or explain this. There is also no explanation as to why this case constitutes a complex matter requiring more than 35 RFAs. Plaintiff alleges two causes of action – negligence and premises liability. These are overlapping issues so most evidence will be applicable to both causes of action. The Opposition claims Plaintiff “has sought medical care from over two dozen distinct medical providers to address [his] severe injuries,” which included injuries to his lumbar spine, cervical spine, left shoulder, right hip, right ankle, head, and umbilical hernia. (Opp. p.3:5-7.) RFA numbers 40 through 80 concern the injuries Plaintiff allegedly obtained from the fall. RFA numbers 81 through 105 concern Plaintiff's treatment for those injuries. Again, the court assumes Plaintiff contends the extent of his injuries necessitate more than 35 RFAs. Importantly, Plaintiff has not met his burden to demonstrate that more than 35 RFAs are necessary.

Second, Defendant argues the RFAs improperly seek expert medical opinions and medical conclusions. Defendant argues the RFAs ask Defendant to admit various legal theories, like negligence and vicarious liability (Nos. 33-39), which are not factual matters. Defendant further argues the RFAs concerning Plaintiff's medical history and treatment exceed Stater Bros.' knowledge and are unduly burdensome and disproportionate. Stater Bros. contends it would have to obtain experts simply to respond to these requests. State Bros. also argues Plaintiff is attempting to manufacture cost-of-proof sanctions through improper discovery requests. In Opposition, Plaintiff argues the discovery simply asks Defendant to assert its legal positions ahead of trial.

Cohen's declaration in Opposition to the motion indicates she advised Defendant's counsel they could respond to the RFAs with “deny” or “unable to admit or deny” if they feel they cannot respond to a RFA without expert knowledge. (Cohen Opp. Decl. ¶¶7.) This is true. For example, RFA No. 49 asks Defendant to admit that Plaintiff “was not more susceptible to suffering a cervical spine injury than a normal healthy person” on the date he was injured. If Stater Bros. cannot admit or deny that RFA without an expert opinion, it can simply respond with “unable to admit or deny.” (CCP §2033.220(c).) RFA numbers 33-39 are proper in that they ask Defendant to admit various legal contentions. However, given Plaintiff's failure to meet its burden to justify the number of RFAs served, the court must grant the motion for requests 36 through 105.

## Sanctions

The court “shall” impose a monetary sanction against the losing party on the motion for protective order, unless it finds that party made or opposed the motion “with substantial justification” or other circumstances render sanctions “unjust.” (CCP §2033.080(d).)

Neither party is entitled to sanctions. Defendant properly brought the motion because Plaintiff did not justify serving more than the permitted 35 RFAs. However, Plaintiff properly opposed the motion because the substance of the RFAs was proper. Given both parties had meritorious arguments both in support of and in opposition to the motion, sanctions are not appropriate for either party.

2.

| CASE #      | CASE NAME                           | HEARING NAME                                                                                   |
|-------------|-------------------------------------|------------------------------------------------------------------------------------------------|
| CVPS2501786 | PENICK VS EISENHOWER MEDICAL CENTER | MOTION TO COMPEL:<br>ANSWER/RESPONSE TO<br>PRODUCTION OF DOCUMENTS SET<br>ONE BY ARLENE PENICK |

**Tentative Ruling:** Granted in part.

Moot as to substantive motion, but granted as to sanctions.

Moving party to provide notice pursuant to CCP 1019.5.

Plaintiff Arlene Penick (“Plaintiff”) slipped and fell at Defendant Eisenhower Medical Center (“Defendant”) causing her personal injuries. On March 14, 2025, Plaintiff filed her complaint alleging two causes of action: 1) general negligence; and 2) premises liability.

Plaintiff moves to compel initial responses to requests for production of documents, set one from Defendant, which were served on January 8, 2026. Plaintiff’s counsel declares he gave extensions to April 15, 2026 to respond, but no verified responses were received by that date. Plaintiff also requests sanctions of \$2,565 (\$450 x 5.7 hours + \$60 filing fee).

In opposition, Defendant states its counsel requested an extension to May 6, 2026, but Plaintiff only provided until April 15, 2026. Defendant’s counsel’s office served unverified responses April 15, 2026, Plaintiff filed the motion May 5, 2026 and verified responses were served May 12, 2026. Defendant argues sanctions are not appropriate as counsel inadvertently forgot to follow up on her client’s execution of the verification, but did so promptly after receiving the motion and served the verification upon receipt.

In reply, Plaintiff argues Defendant’s late responses were so poor that they required a 29 page meet and confer letter and as such sanctions are appropriate.

### Motion to Compel Response(s)

Code of Civil Procedure sections 2030.290(b) allows the propounding party to file a motion to compel responses to interrogatories if a response has not been received. If responses are untimely, responding party waives objections. (*Id.* at §§ 2030.290(a).)

Here, it is undisputed that Defendant served verified responses after the motion was filed and as such, the motion is moot.

### Sanctions

As to sanctions, for production of documents, Section 2031.300(c) provides that “the court shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response ... unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” The court may award sanctions even though the requested discovery was provided after the motion was filed. (Cal. R. Ct. 3.1348(a).)

Defense counsel requested a continuance to May 6, Plaintiff’s counsel provided until April 15 and Defendant served unverified responses on April 15. Defense counsel did not provide an explanation for not having the verification prior to service, other than she forgot to follow up with her client because other matters needed immediate attention. However, that does not excuse failing to respond timely. Sanctions are warranted. However, Plaintiff’s request for \$2,565 is too much for this straightforward motion. Reduced to \$960 (2 hours x \$400 + \$60 filing fee) payable within 30 days of this order becoming final to Plaintiff by Defendant and Defense counsel jointly.

3.

| CASE #      | CASE NAME              | HEARING NAME                                                                                   |
|-------------|------------------------|------------------------------------------------------------------------------------------------|
| CVPS2601050 | ROSARIO VS PSTPS, INC. | MOTION FOR LEAVE TO AMEND COMPLAINT OF PRISCILLA BRITTANY ROSARIO BY PRISCILLA BRITTANY ROSARI |

**Tentative Ruling:** Granted.

No opposition filed by served defendants and several defendants have not yet been served.

Plaintiff to file proposed 1<sup>st</sup> Amended Complaint within 5 days of this order becoming final.

Moving party to provide notice pursuant to CCP 1019.5.

4.

| CASE #      | CASE NAME           | HEARING NAME                                                                           |
|-------------|---------------------|----------------------------------------------------------------------------------------|
| CVPS2401945 | VILLAGOMEZ VS URIBE | NOTICE OF MOTION AND MOTION FOR ORDER SETTING ASIDE DEFAULT, VACATING DEFAULT JUDGMENT |

**Tentative Ruling:** Denied.

Moving Defendant seeks relief from previously entered default on September 25, 2024.

Court to provide notice pursuant to CCP 1019.5.

### Motion to Set Aside

The court is empowered to relieve a party “upon any terms as may be just ... from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect.” (C.C.P. §473(b).) Because the law favors judgments on the merits, “doubts must be resolved in favor of relief....” (*Lasalle v. Vogel* (2019) 36 Cal.App.5th 127, 134.) If the party in default moves promptly for relief and no prejudice to the opposing party will result from setting aside the default, only “very slight evidence will be required to justify a court in setting aside the default” (*Elston v. City of Turlock* (1985) 38 Cal.3d 227, 233 [quoting *Berri v. Rogero* (1914) 168 Cal. 736, 740].)

The motion must be filed within six months of the clerk’s entry of default and also within a “reasonable time” after discovery of the default. (*Elston v. City of Turlock* (1985) 38 Cal.3d 227, 234.) A delay of three or more months or more is an unofficial standard under which courts will routinely deny relief unless there is a satisfactory explanation for the delay. (*Stafford v. Mach* (1998) 64 Cal.App.3d 1174, 1184.) The time runs from the entry of the default, not the default judgment. (*Pulte Homes Corp. v. Williams Mechanical, Inc.* (2016) 2 Cal.App.5th 267, 273.)

Here, the court does not have jurisdiction to grant the requested relief almost 2-years after entry of default.